

#	Case Name	Tentative
		The Court sets a review hearing concerning the status of the arbitration for January 29, 2027 at 9:00 a.m. in Department C28. Five days before the hearing, the parties are ordered to file a joint status report. The Court orders this matter STAYED pending completion of the arbitration or further order of the Court. The case management conference scheduled for September 21, 2026 is VACATED. Defendants shall give notice of this ruling.
55.	Hermann v. American Honda Motor Co., Inc. 2026-01563133	Defendant American Honda Motor Company, Inc.'s motion to compel arbitration and staying the court action pending resolution of the arbitration is DENIED. On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the Court must order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists unless it determines that: (1) the right to compel arbitration has been waived by the petitioner; (2) grounds exist for the revocation of the agreement; or (3) a party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. Code Civ. Proc. § 1281.2. Under section 1281.2, a trial court must grant a motion or petition to compel arbitration only "if it determines that an agreement to arbitrate the controversy exists." <u>Gamboa v. Northeast Community Clinic</u> (2021) 72 Cal.App.5th 158, 164. The court makes this determination in a summary process. <u>Id.</u> The trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination. <u>Id.</u> The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence. <u>Id.</u> Because the existence of the agreement is a statutory prerequisite to granting the motion or petition, the party seeking arbitration bears the burden of proving its existence by a preponderance of the evidence. <u>Id.</u> at 164-165.

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		Defendant contends plaintiff entered into two agreements for arbitration that require the dispute be resolved through arbitration – a lease and the warranty booklet. However, defendant is not a party to the lease, copies of which are attached to the moving papers as Exhibit A and to the opposing papers as Exhibit 1. The lease is between plaintiff and DCH Tustin Acura, which is a dealership. Although defendant contends in the reply that it should be permitted to enforce the arbitration provision in the lease as the assignee of the dealership, the parent company, or a third party beneficiary, the lease has nothing to do with the warranties, which arise independently. As stated by the court in <u>Ford Motor Warranty Cases</u> (2023) 89 Cal.App.5th 1324, 1335, “California law does not treat manufacturer warranties imposed outside the four corners of a retail sale contract as part of the sale contract.” Thus, defendant cannot compel arbitration based on the agreement between plaintiff and DCH Tustin Acura. The court is not persuaded by defendant’s argument that the above holding does not apply to leases. Defendant cannot compel arbitration based on the lease. The other provision for arbitration relied on by defendant is in the warranty booklet, a copy of which submitted by defendant as Exhibit B. However, even if the booklet were given to plaintiff, defendant does not show that plaintiff agreed to the terms of the arbitration provision in the booklet. In other words, defendant has not shown that a contract to arbitrate was formed with the plaintiff simply because plaintiff was given the booklet. Defendant has not met its burden of showing that an agreement to arbitrate the claims in the complaint was entered into by the parties. The motion is DENIED. Defendant shall give notice of this ruling.
56.	Humphrey v. Nissan North America, Inc. 2025-01496999	Defendant Nissan North America, Inc.’s motion to transfer venue is DENIED without prejudice. Defendant seeks to transfer venue to the San Bernardino County Superior Court. Although the notice of motion does not cite any code sections as authority for the motion, defendant’s memo of points and authorities indicates that the motion is brought under